

WEBSITE DEVELOPMENT & MAINTENANCE AGREEMENT

Prepared by Creative Coders LLC | Effective Date: August 10, 2026

PARTIES TO THIS AGREEMENT

Developer: **Creative Coders LLC** — Georgia Limited Liability Company

Client: **Brandon Boyd** — Canton, Georgia

PAYMENT & MAINTENANCE SUMMARY — AS OF AUGUST 10, 2026

' 25% Deposit (\$500.00) — PAID

&j 75% Balance (\$1,500.00) — DUE UPON SIGNING THIS AGREEMENT

Ø=Ü Monthly Maintenance (\$20.00/month) — BEGINS SEPTEMBER 1, 2026

PART I — WEBSITE DEVELOPMENT AGREEMENT

1. SCOPE OF WORK

Developer agrees to design, develop, and deliver a website (the "Website") as mutually discussed and agreed upon by both Parties prior to the execution of this Agreement. Any features, pages, or functionality not explicitly discussed and agreed upon in writing before signing are considered out of scope.

2. PROJECT PRICE & PAYMENT TERMS

The total agreed compensation for the Website is Two Thousand Dollars (\$2,000.00 USD), payable as follows:

- 25% (\$500.00) — Paid on August 10, 2026, prior to work commencement. ' RECEIVED
- 75% (\$1,500.00) — Due and payable immediately upon Client's signature of this Agreement on August 10, 2026. By signing below, Client acknowledges this balance is currently due and agrees to remit payment to Creative Coders LLC promptly upon execution.

3. DELIVERY DATE & STATUS

Developer has completed and delivered the Website on August 10, 2026. The 25% deposit has been received and all development work is complete. The Website is now live and available for Client's use. The remaining balance of \$1,500.00 is due upon signing of this Agreement.

4. ACCEPTANCE

Upon delivery, Client has five (5) business days to review the Website and notify Developer in writing of any items that do not conform to the agreed scope. Failure to provide written notice within this period constitutes acceptance of the Website as delivered.

5. CHANGES AFTER DELIVERY — BILLABLE EXTRAS

Any modifications, additions, corrections, or enhancements requested by Client more than ten (10) calendar days after delivery fall outside the scope of this Agreement and will be billed separately at Developer's then-current rate, quoted in writing before work begins. Developer is under no obligation to perform post-delivery changes without a separate written agreement and payment.

6. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, Developer's total cumulative liability to Client for any and all claims arising out of or related to this Agreement — whether in contract, tort, or otherwise — shall not exceed the total amount paid by Client to Developer (\$2,000.00). This limitation applies regardless of the form of action or the basis of the claim.

7. DISCLAIMER OF LIABILITY FOR BUSINESS LOSSES

Client acknowledges that the Website's performance, uptime, search engine ranking, conversion rate, and revenue generation depend on many factors beyond Developer's control. DEVELOPER SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO: LOSS OF REVENUE, LOSS OF PROFITS, LOSS OF BUSINESS OPPORTUNITIES, LOSS OF CUSTOMERS, OR ANY OTHER BUSINESS LOSSES, arising from the use of, inability to use, or performance of the Website.

8. INTELLECTUAL PROPERTY & OWNERSHIP

Upon receipt of final payment in full, Developer assigns to Client all rights, title, and interest in the Website's custom code and design created specifically for this project. Developer retains the right to display the Website in its portfolio and marketing materials. Third-party components, plugins, libraries, stock images, or fonts remain subject to their respective licenses; Client is responsible for maintaining required licenses after delivery.

9. DOMAIN & SOURCE CODE TRANSFER

Developer retains management of the Website's domain name and source code on Client's behalf for the duration of the business relationship. No transfer of the domain or source code files is required as part of this Agreement.

Should Client choose to discontinue services with Creative Coders LLC and transition to another web development agency or manage the Website independently, Developer agrees to:

- Transfer full control of the domain name to Client or Client's designated registrar within ten (10) business days of written notice of termination;
- Provide a copy of the Website's source code files to Client or Client's new agency within ten (10) business days of written notice of termination;
- Assist with a reasonable handoff, not to exceed two (2) hours of Developer's time, at no additional charge.

Client acknowledges that domain transfer and source code delivery will only be initiated after all outstanding balances owed to Developer — including any unpaid monthly maintenance fees — have been paid in full.

10. ENTRY INTO MAINTENANCE AGREEMENT

By signing this Agreement, Client simultaneously enters into the Website Maintenance Agreement set forth in Part II below. The monthly maintenance fee of \$20.00 will begin on September 1, 2026, and will be billed on the 1st of each month thereafter. No separate signature is required to activate the Maintenance Agreement — execution of this document constitutes acceptance of both Part I and Part II.

11. DISPUTE RESOLUTION — BINDING ARBITRATION

Any dispute arising out of this Agreement shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) under its Commercial Arbitration Rules, held in Cherokee County, Georgia. The arbitrator's decision is final and binding. The prevailing Party recovers attorneys' fees and costs. BOTH PARTIES WAIVE ANY RIGHT TO A JURY TRIAL.

12. GOVERNING LAW

This Agreement is governed by the laws of the State of Georgia, without regard to its conflict of law provisions.

This Agreement, together with any signed Addenda, constitutes the entire agreement between the Parties and supersedes all prior understandings. Any amendment must be in writing and signed by both Parties. If any provision is found unenforceable, the remaining provisions continue in full force.

PART II — ADDENDUM A: WEBSITE MAINTENANCE AGREEMENT

Attached to and made part of the Website Development Agreement between Creative Coders LLC ("Developer") and Brandon Boyd ("Client"), dated August 10, 2026. This Maintenance Agreement is activated automatically upon execution of the main Agreement and requires no separate signature. Monthly billing begins September 1, 2026.

A-1. MAINTENANCE SERVICES

Effective September 1, 2026, Developer agrees to provide the following ongoing maintenance services (the "Maintenance Services") for a monthly fee:

- Monitoring the Website to ensure it remains live and accessible
- Coordinating with the hosting provider to restore service in the event of unplanned downtime
- Routine checks to confirm the Website is functioning as originally delivered

A-2. MONTHLY FEE & BILLING

Client agrees to pay Developer Twenty Dollars (\$20.00 USD) per month for Maintenance Services, beginning September 1, 2026, and due on the 1st of each month thereafter. Failure to pay within 7 days of the due date may result in suspension of Maintenance Services without liability to Developer.

MAINTENANCE BILLING SCHEDULE

First Bill: September 1, 2026 (\$20.00) Recurring: 1st of each month Amount: \$20.00/month

A-3. WHAT IS NOT INCLUDED

The monthly fee does NOT cover the following (billed separately by written quote):

- Bug fixes — corrections to errors, broken functionality, or unintended behavior
- New features — any additions, enhancements, or changes to functionality or design
- Content updates — changes to text, images, pricing, or other content
- Third-party service issues — outages or failures caused by external services outside Developer's control

A-4. UPTIME & DOWNTIME POLICY

Developer will make commercially reasonable efforts to restore the Website when downtime is detected. Client acknowledges and agrees:

- Downtime is a normal, expected part of operating any website. No website can be guaranteed online 100% of the time.
- Developer's role is to respond to and resolve downtime, not to prevent all possible downtime.
- Client expressly waives any right to bring a legal claim against Developer for any period of downtime, provided Developer takes reasonable steps to restore service.
- Developer's sole remedy obligation is to restore the Website. No refunds, penalties, or damages are owed for downtime.

A-5. PROTECTION AGAINST COMMON WEBSITE ISSUES

Client acknowledges that websites are complex systems subject to industry-wide issues beyond any developer's ability to fully prevent. Developer shall not be liable, and Client agrees not to bring any legal claim against Developer, for losses arising from the following common website issues:

1. Hosting & Server Outages — Interruptions caused by the hosting provider's infrastructure, maintenance windows, or hardware failures.

2. Third-Party Service Failures — Malfunctions or outages of payment processors, booking systems, email services, APIs, CDNs, or DNS providers.

3. Browser & Device Compatibility — Display or functional differences arising after delivery due to browser updates or new devices.

4. Security Incidents — Hacking, malware, brute-force attacks, or spam unless caused by Developer's gross negligence.

5. Search Engine Changes — Any decline in rankings or visibility caused by algorithm updates.

6. Software & Plugin Updates — Incompatibilities from automatic updates to third-party software, plugins, or frameworks not under Developer's direct control.

7. Data Loss — Loss of content, user data, or files due to hosting failures, Client deletion, or security breaches not from Developer's gross negligence. Client is responsible for independent backups.

8. Performance Variability — Speed fluctuations caused by hosting limitations, traffic spikes, or third-party scripts.

9. Domain & SSL Expiration — Loss of access caused by Client's failure to renew the domain name or SSL certificate on time.

10. Force Majeure — Issues caused by natural disasters, cyberattacks, internet infrastructure failures, or government actions.

In all cases above, Developer's maximum liability shall not exceed the total monthly maintenance fees paid by Client in the three (3) months preceding the event giving rise to the claim.

A-6. TERM & CANCELLATION

- Maintenance Services begin on September 1, 2026.
- Either Party may cancel with 30 days' written notice.
- Client is responsible for payment through the end of the 30-day notice period.
- Upon cancellation, and once all outstanding balances are settled, Developer will initiate domain and source code transfer per Section 9 of Part I.

A-7. RELATIONSHIP TO MAIN AGREEMENT

All terms of the Website Development Agreement — including Limitation of Liability, Business Loss Disclaimer, Domain & Source Code Transfer, Dispute Resolution, and Governing Law — apply equally to this Addendum.

SIGNATURES

By signing below, both Parties confirm they have read, understood, and agreed to all terms in Part I and Part II of this Agreement. Client acknowledges that:

- The remaining balance of \$1,500.00 is due and payable immediately upon signing.
- The Website Maintenance Agreement (Part II) is activated by this signature, with billing beginning September 1, 2026 at \$20.00/month.
- All limitation of liability, disclaimer, domain transfer, and arbitration provisions are accepted in full.

& LEGAL DISCLAIMER

This document was prepared for general informational purposes only and does not constitute legal advice. Creative Coders LLC is strongly encouraged to have this Agreement reviewed by a licensed Georgia attorney before presenting it to any client.

DEVELOPER

Creative Coders LLC

Signature: _____

Printed Name: _____

Title: _____

Date: _____

CLIENT

Brandon Boyd

By signing, I agree to pay
\$1,500.00 immediately
and \$20.00/month from Sep 1, 2026.

Signature: _____

Printed Name: _____

Date: _____

